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25-CIV-05784

REGINALD LEACH VS GLOBAL BLOOD THERAPEUTICS, INC.

REGINALD LEACH
GLOBAL BLOOD THERAPEUTICS, INC.

ERIN BERNSTEIN
GEORGE L GIGOUNAS

DEFENDANT GLOBAL BLOOD THERAPEUTICS, INC.'S DEMURRER TO PLAINTIFF'S COMPLAINT

TENTATIVE RULING:

This action arises from Defendant Global Blood Therapeutics' ("Defendant") development, testing, manufacturing, labeling, packaging, promotion, advertising, marketing, distribution, and sale of Oxbryta[®] (voxelotor), a prescription medication intended to treat sickle cell disease ("SCD") in adults and children four years of age and older. (Complaint, filed July 30, 2025, ¶ 1.) Plaintiff Reginald Leach ("Plaintiff") alleges that he was prescribed Oxbryta to treat his SCD and that the drug caused him to suffer more severe and frequent sickle cell anemia with crisis and acute chest syndrome. (Id., ¶ 5.)

Defendant demurs to the First Cause of Action for strict liability—failure to warn, Second Cause of Action for strict liability—design defect, Third Cause of Action for negligence, Fourth Cause of Action for breach of express warranty, Fifth Cause of Action for breach of implied warranty, and Sixth Cause of Action for negligent misrepresentation. Defendant principally contends that all six causes of action are federally preempted and that the Fourth and Fifth Causes of Action are additionally deficient under the learned-intermediary doctrine. (NODD, filed Sept. 10, 2025, pp. i:8–ii:6.)

GOVERNING STANDARDS

A demurrer tests the legal sufficiency of the pleading. In ruling on a demurrer, the Court accepts as true all material facts properly pleaded, but not contentions, deductions, or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer generally may be sustained only for defects appearing on the face of the pleading or from matters properly subject to judicial notice. (Code Civ. Proc., § 430.30, subd. (a); *Blank, supra*, at p. 318.) The complaint must be liberally construed with a view toward substantial justice between the parties. (Code Civ. Proc., § 452.)

Where a reasonable possibility exists that a pleading defect can be cured by amendment, leave to amend should be granted. The burden, however, rests on the plaintiff to demonstrate how the complaint can be amended to cure the identified defect. (*Blank, supra*, 39 Cal.3d at p. 318.)

FIRST CAUSE OF ACTION — STRICT LIABILITY—FAILURE TO WARN

The demurrer to the First Cause of Action is **OVERRULED**.

Defendant contends that Plaintiff's failure-to-warn claim is preempted by federal law because Defendant could not have changed Oxbryta's FDA-approved label without FDA approval.

Federal law generally prohibits a prescription-drug manufacturer from unilaterally changing an FDA-approved label. An exception exists under the FDA's changes-being-effected ("CBE") regulation, which permits a manufacturer, under specified circumstances, to strengthen a contraindication, warning, precaution, or adverse-reaction statement based on "newly acquired information" without awaiting prior FDA approval. (21 C.F.R. § 314.70(c)(6)(iii)(A).) "Newly acquired information" includes data, analyses, or other information not previously submitted to FDA that reveal risks of a different type or greater severity or frequency than previously disclosed to the agency. (21 C.F.R. § 314.3(b).)

The Court finds persuasive the framework articulated in *Gibbons v. Bristol-Myers Squibb Co.* (2d Cir. 2019) 919 F.3d 699, 708. Under that framework, a plaintiff seeking to avoid impossibility preemption must plausibly allege a labeling deficiency that the manufacturer could have addressed through the CBE process. If such a showing is made, the manufacturer may nevertheless establish preemption by demonstrating, under the standard articulated in *Wyeth v. Levine* (2009) 555 U.S. 555 and *Merck Sharp & Dohme Corp. v. Albrecht* (2019) 587 U.S. 299, that FDA would not have approved the proposed labeling change.

Here, Plaintiff alleges the existence of newly acquired information arising from the RETRO study. According to the Complaint, the study found that 68.1 percent of participating patients experienced SCD complications that were either new or had worsened in intensity or frequency during treatment. Plaintiff further alleges that the annualized incidence of any SCD complication increased from 45.0 percent before Oxbryta to 106.7 percent after Oxbryta; acute chest syndrome increased from 2.9 percent to 8.8 percent; and acute pain crisis increased from 33.6 percent to 68.7 percent. Plaintiff alleges that RETRO was completed on February 25, 2022. (Complaint, ¶ 40.) Plaintiff further alleges that Defendant withdrew Oxbryta from the market in September 2024. (*Id.*, ¶ 4.)

At the pleading stage, these allegations are sufficient to support a reasonable inference that the RETRO study generated information concerning a greater frequency or severity of risks associated with Oxbryta than had previously been disclosed to FDA and thus potentially constituted "newly acquired information" within the meaning of 21 C.F.R. section 314.3(b). The relevant point is not simply that more than two years elapsed between completion of the study and withdrawal of Oxbryta, but that Plaintiff alleges Defendant possessed information during that period that could have supported a unilateral warning change under the CBE regulation.

Nothing presently before the Court establishes, as a matter of law on demurrer, either that the alleged RETRO information had previously been submitted to FDA, that it was legally insufficient to support a CBE labeling change, or that FDA would have rejected the stronger warning alleged to have been required. Accordingly, Defendant has not established impossibility preemption on the face of the Complaint.

The demurrer to the First Cause of Action is therefore **OVERRULED**.

SECOND CAUSE OF ACTION — STRICT LIABILITY—DESIGN DEFECT

The demurrer to the Second Cause of Action is **SUSTAINED WITHOUT LEAVE TO AMEND**.

Plaintiff has expressly agreed to withdraw this cause of action. Moreover, California does not impose strict liability on prescription-drug manufacturers for alleged design defects. (*Brown v. Superior Court* (1988) 44 Cal.3d 1049, 1061, 1069.)

Accordingly, the demurrer to the Second Cause of Action is **SUSTAINED WITHOUT LEAVE TO AMEND**.

THIRD CAUSE OF ACTION — NEGLIGENCE

The demurrer to the Third Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

Plaintiff argues that his negligence claim may proceed as a pre-FDA-approval negligent-design theory. Federal courts are divided as to whether such a theory is preempted. Some federal courts, including the Northern District of California in *Holley v. Gilead Sciences, Inc.* (N.D. Cal. 2019) 379 F.Supp.3d 809, 824, have concluded that a manufacturer potentially can comply with both state and federal law by designing a different product before submitting that product for FDA approval. (See also *In re Tepezza Marketing, Sales Practices, & Products Liability Litigation* (N.D.Ill. Nov. 3, 2023, No. 23 C 3568) 2023 WL 7281665, at *2–3.) Other courts have reached the contrary conclusion. (See, e.g., *Yates v. Ortho-McNeil-Janssen Pharmaceuticals, Inc.* (6th Cir. 2015) 808 F.3d 281, 299–300.)

The Court need not resolve that broader preemption question on the present pleading because Plaintiff has not adequately alleged a preapproval negligent-design theory.

California law permits negligence-based product-liability claims involving prescription drugs even though strict liability for prescription-drug design defects is unavailable. (*Brown, supra*, 44 Cal.3d at p. 1061.) The California Supreme Court recently addressed the limits of negligence liability in the prescription-drug context in *Gilead Tenofovir Cases* (Aug. 3, 2026, S283862) ___ Cal.5th ___. There, the Court held that a manufacturer does not owe users of a concededly nondefective drug a separate duty to develop and commercialize an allegedly safer alternative drug. That decision does not eliminate traditional negligence theories based on an allegedly defective product itself, including defects in design, manufacture, or warnings.

Here, however, the Third Cause of Action does not clearly allege that Oxbryta was negligently designed before FDA approval or identify what aspect of its design rendered the product defective. Instead, the Complaint alleges, among other things, that Defendant downplayed the significance of clinical-trial results to FDA; knew before marketing Oxbryta that it lacked clinical benefit; knew or should have known of studies concerning Oxbryta's mechanism of action; failed to provide FDA with newly acquired information; and should have further investigated the risks associated with the drug. (Complaint, ¶¶ 26, 33–36, 47–49, 56–58.)

To the extent Plaintiff's negligence theory depends solely on an alleged failure to provide information to FDA or on allegedly misleading FDA, such a claim implicates *Buckman Co. v. Plaintiffs' Legal Committee* (2001) 531 U.S. 341, 348, which holds that state-law claims predicated solely on duties of disclosure owed to FDA are impliedly preempted. State tort law cannot impose liability merely for violating disclosure obligations that exist solely by virtue of the federal regulatory scheme.

At the same time, nothing in this ruling forecloses Plaintiff from alleging, if he can do so consistently with California law and federal preemption principles, an independent state-law negligence theory based on a defect in Oxbryta itself or another state-law duty that exists independently of Defendant's obligations to FDA.

Nor does the Court decide at this stage whether a properly pleaded preapproval negligent-design theory would ultimately survive federal preemption.

Accordingly, the demurrer to the Third Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

FOURTH CAUSE OF ACTION — BREACH OF EXPRESS WARRANTY

The demurrer to the Fourth Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

California law does not categorically preclude a warning-based warranty claim against a prescription-drug manufacturer. (*Carlin v. Superior Court* (1996) 13 Cal.4th 1104, 1118.) In the prescription-drug context, however, the manufacturer ordinarily directs information concerning the drug’s properties to the prescribing physician, who stands in the shoes of the ordinary consumer. (*Id.* at p. 1118.)

The learned-intermediary doctrine therefore bears directly on Plaintiff’s express-warranty theory. Manufacturers of prescription drugs ordinarily discharge their duty concerning product warnings by adequately informing prescribing physicians rather than patients directly. (*Carlin, supra*, 13 Cal.4th at p. 1116; *Himes v. Somatics, LLC* (2024) 16 Cal.5th 209, 224.)

Plaintiff alleges generally that, despite knowledge of serious problems with Oxbryta, Defendant continued to market the drug, make presentations at conferences, and distribute medical literature, studies, and other communications to the medical community in an effort to mislead physicians and the public concerning Oxbryta’s risks. Plaintiff further alleges that Defendant made representations intending to induce reliance. (Complaint, ¶¶ 166–168.) Plaintiff also alleges generally that Defendant should have warned patients and prescribers, including Plaintiff’s treating physicians, of Oxbryta’s adverse events and that Defendant concealed Oxbryta’s true risks from Plaintiff and his physicians. (*Id.*, ¶¶ 53, 79.)

These allegations do not sufficiently connect any particular affirmation, promise, or representation by Defendant to Plaintiff’s prescribing or treating physician. The Complaint does not allege what representation constituting an express warranty was communicated to any physician who prescribed Oxbryta to Plaintiff, when or how that physician received it, or that the representation played any role in the decision to prescribe Oxbryta to Plaintiff.

The Court does not hold that Plaintiff must prove his express-warranty claim at the pleading stage. But generalized allegations that Defendant marketed Oxbryta to the medical community do not sufficiently allege the necessary connection between Defendant’s alleged express representations and Plaintiff’s prescription.

Accordingly, the demurrer to the Fourth Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

FIFTH CAUSE OF ACTION — BREACH OF IMPLIED WARRANTY

The demurrer to the Fifth Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

The implied-warranty claim requires somewhat different analysis. Unlike an express-warranty claim, an implied warranty does not depend upon proof that Defendant made a particular express promise or

representation. Accordingly, the absence of allegations that Plaintiff's physician actually saw specific marketing materials is not, standing alone, a sufficient basis to reject an implied-warranty theory.

Nevertheless, where a prescription-drug warranty claim is premised upon allegedly inadequate disclosure of known or knowable risks, California law treats the prescribing physician as the relevant intermediary and, ordinarily, as the person standing in the shoes of the consumer. (*Carlin, supra*, 13 Cal.4th at p. 1118.)

The Complaint does not adequately allege the causal connection between the allegedly inadequate information provided by Defendant and Plaintiff's use of Oxbryta. In *Himes v. Somatics, LLC, supra*, 16 Cal.5th at page 226, the California Supreme Court explained that causation under the learned-intermediary doctrine may be established by showing either that an adequate warning would have affected the physician's treatment decision or, alternatively, that the physician would have communicated the stronger warning to the patient and an objectively prudent person in the patient's position would thereafter have declined the treatment notwithstanding the physician's continued recommendation.

Plaintiff presently alleges neither theory with sufficient factual specificity. The Complaint does not allege facts showing that an adequate disclosure of Oxbryta's risks would have caused Plaintiff's prescribing physician to decline to prescribe the drug or materially alter the treatment recommendation. Nor does it allege that the physician would have communicated a stronger warning to Plaintiff and that an objectively prudent patient in Plaintiff's position would have declined Oxbryta after receiving that warning.

Accordingly, the demurrer to the Fifth Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

SIXTH CAUSE OF ACTION — NEGLIGENT MISREPRESENTATION

The demurrer to the Sixth Cause of Action is **OVERRULED** on the ground of federal preemption.

As discussed above, *Buckman Co. v. Plaintiffs' Legal Committee, supra*, 531 U.S. at page 348, precludes a state-law claim that exists solely because a defendant allegedly misrepresented or withheld information from FDA. Thus, to the extent Plaintiff seeks to impose liability for representations made solely to FDA or for failure to provide FDA information required exclusively by federal law, such a theory is preempted.

The Sixth Cause of Action, however, is not alleged solely on that basis. Plaintiff alleges that Defendant also made misleading representations and omissions to physicians and the broader medical community concerning Oxbryta's safety and risks. (Complaint, ¶¶ 79, 166–168.) A state-law duty not to make negligent misrepresentations to physicians or others does not arise solely from the FDCA or Defendant's relationship with FDA.

Accordingly, federal preemption does not dispose of the Sixth Cause of Action in its entirety on the face of the Complaint. Whether Plaintiff can ultimately establish the elements of negligent misrepresentation, including an actionable misrepresentation, justifiable reliance, causation, and damages, is not resolved by the present demurrer insofar as Defendant challenges the claim on federal-preemption grounds.

The demurrer to the Sixth Cause of Action is therefore **OVERRULED**.

DISPOSITION

Defendant Global Blood Therapeutics' Demurrer to Plaintiff Reginald Leach's Complaint is ruled upon as follows:

1. The demurrer to the **First Cause of Action for strict liability—failure to warn** is **OVERRULED**.
2. The demurrer to the **Second Cause of Action for strict liability—design defect** is **SUSTAINED WITHOUT LEAVE TO AMEND**, consistent with Plaintiff's withdrawal of that claim.
3. The demurrer to the **Third Cause of Action for negligence** is **SUSTAINED WITH LEAVE TO AMEND**.
4. The demurrer to the **Fourth Cause of Action for breach of express warranty** is **SUSTAINED WITH LEAVE TO AMEND**.
5. The demurrer to the **Fifth Cause of Action for breach of implied warranty** is **SUSTAINED WITH LEAVE TO AMEND**.
6. The demurrer to the **Sixth Cause of Action for negligent misrepresentation** is **OVERRULED**.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Plaintiff, as the prevailing party, shall prepare and submit a proposed written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, and shall provide notice of the ruling as required by law. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

9:30 AM

LINE: 8

25-CIV-02568

PATELCO CREDIT UNION VS. JOVANNA S. BADGER

PATELCO CREDIT UNION
JOVANNA S. BADGER

BARRY A. SMITH
PRO SE

DEFENDANT JOVANNA BADGER’S MOTION TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT

TENTATIVE RULING:

For the following reasons, Jovanna S. Badger’s Motion to Vacate the Default and Default Judgment entered on December 26, 2025, is **DENIED**.

BACKGROUND

This is a debt-collection action arising from Defendant Jovanna S. Badger’s (“Defendant”) deposit account with Plaintiff credit union. The Complaint alleges that, in June and July 2024, Defendant withdrew, transferred, or otherwise spent funds exceeding the amount available in her account and thereafter failed to cure the resulting overdrafts.

The Complaint was filed on April 15, 2025. According to the proof of service and declaration of registered process server Romana Lazalde, Lazalde personally served Defendant on August 11, 2025, at Defendant’s residence at 1 Bolero Way, Daly City, California. Lazalde states that she spoke with a woman who confirmed that she was Jovanna Badger and, when Defendant refused to accept the summons and Complaint by hand, Lazalde dropped the documents through the bars of the security gate in front of Defendant. (Lazalde Decl., ¶¶ 2–4.)

Defendant moves to vacate the default and default judgment pursuant to Code of Civil Procedure sections 473, subdivision (d), and 473.5. She contends that she was not properly served and did not have actual notice of the action in time to defend it. The Court is not persuaded.

LEGAL STANDARD

Code of Civil Procedure section 473, subdivision (d), authorizes the Court to set aside a void judgment or order. Compliance with the statutory requirements for service of process is necessary to establish personal jurisdiction; accordingly, a default judgment entered against a defendant who was not served in the manner prescribed by statute is void. (*Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544; *Sakaguchi v. Sakaguchi* (2009) 173 Cal.App.4th 852, 858.)